

**DISPOSITION OF CHARGES**

PD 488-142A (Rev. 1-06)

CASE NO.
2022-24983
BOOK & PAGE NO.
Page 1 of 1
PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST RANK/SURNAME		FIRST	M.I.	COMMAND
Police Officer Roman,		Marcelino		105 Precinct
SHIELD NO.	TAX REGISTRY NO.		DATE APPOINTED	
30168	965481		January 10, 2018	
RANK/NAME OF COMPLAINANT				COMMAND
Prosecutor Brian Arthur				CCRB -Administrative Prosecution Unit
DATE OF CHARGES	DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED	
August 4, 2022	December 7, 2022		December 7, 2022	

TRIAL COMMISSIONER

Honorable Jeff S. Adler

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Police Officer Marcelino Roman, while assigned to the 105th Precinct on September 9, 2020, at approximately 1300 hours, in the vicinity of § 87(2)(b) § 87(2)(b) Queens County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department when he threatened to remove § 87(2)(b) to the hospital without sufficient legal authority. <i>(As amended)</i>	GUILTY	It is recommended that Respondent forfeit five (5) vacation days.	

Reviewed by Deputy Commissioner of Trials

R. Maldonado
DEPUTY COMMISSIONER

11/9/2023
DATE

Police Commissioner's Approval:

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Jeff S. Adler
POLICE COMMISSIONER

6/14/23
DATE



POLICE DEPARTMENT

January 9, 2023

-----X
In the Matter of the Charges and Specifications :

Case No.

- against - :

2022-24983

Police Officer Marcelino Roman :

Tax Registry No. 965481 :

105 Precinct :

-----X
At:

Police Headquarters
One Police Plaza
New York, NY 10038

Before:

Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Fredy Kaplan, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Craig Hayes, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Marcelino Roman, while assigned to the 105th Precinct on September 9, 2020, at approximately 1300 hours, in the vicinity of § 87(2)(b) Queens County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department when he threatened to remove § 87(2)(b) to the hospital without sufficient legal authority. *(As amended)*

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED

[now encompassed by
A.G. 304-06, Page 1, Paragraph 1]

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 7, 2022. Respondent, through his counsel, entered a plea of Not Guilty. The CCRB called § 87(2)(b) as a witness, and entered into evidence BWC footage from the two police officers on the scene. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence, I find Respondent Guilty, and recommend a penalty of five (5) vacation days.

ANALYSIS

On the afternoon of September 9, 2020, Respondent and his partner responded to a call involving a landlord-tenant dispute at a Queens residence. When the officers arrived, they separately spoke with the tenant, § 87(2)(b) as well as the landlord and her family. The interactions were captured by the Body-Worn Cameras ("BWC") of the two officers (CCRB Exs. 1-4). It is undisputed that at some point Respondent stated to § 87(2)(b) "If you don't stop it, we're gonna send you to the hospital to get checked out." The CCRB alleges that Respondent was

wrongfully treating § 87(2)(b) as an Emotionally Disturbed Person ("EDP"), and that this statement constituted an improper threat. Respondent contends that it was not a threat, and that he merely was concerned that § 87(2)(b) was having a panic attack.

Video footage from the BWC of each officer essentially captures the entire interaction at the location. The initial footage from each officer (CCRB Exs. 1 & 2) shows their arrival at the scene. Respondent goes inside to speak with the landlord, while his partner remains outside with § 87(2)(b). She calmly explains how the landlord blocked her from using the kitchen, and even spit in § 87(2)(b) face. According to § 87(2)(b), it was an on-going problem, where she was repeatedly attacked and threatened by the landlord and her family, including by the landlord's daughter the day before. § 87(2)(b) stated that she wanted to press charges. Meanwhile, inside the house, the landlord stated that § 87(2)(b) rents a room there, but she does not have the right to use the kitchen. That day, the landlord observed § 87(2)(b) inside the kitchen, and asked her what she was doing there. The landlord and her family denied spitting on § 87(2)(b).

In the follow-up footage of each officer (CCRB Exs. 3 & 4), they go back outside, and § 87(2)(b) can be seen explaining the situation to them as they stand by the entrance gate; she gestures with her hands, but appears relatively calm. There is some discussion about whether a report will be filed, and § 87(2)(b) complains that the officers are not helping her. She asks for the officers' names, and they both give her their cards. Respondent's partner asks § 87(2)(b) if she wants an ambulance. At that point, the landlord's daughter, whose name also is on the lease, arrives in the driveway, and she and § 87(2)(b) exchange heated words. Respondent walks over to speak with the daughter, who explains to him that she is in the middle of eviction proceedings because § 87(2)(b) has been scaring her children with her behavior, including sacrificing birds upstairs. Respondent's partner joins them, and they discuss the issue of access to the kitchen

with the daughter, who sounds upset with what they are saying, insisting that she is not going to take it. Respondent's partner states to Respondent that § 87(2)(b) is not making sense.

The video footage shows Respondent returning to § 87(2)(b). She appears calm as he explains to her how she can get a copy of the report that will be prepared. Respondent then goes inside to collect information from the landlord. § 87(2)(b) walks to the top of the stairs, where she and the daughter in the driveway resume arguing with each other in loud voices. Respondent briefly steps outside to tell § 87(2)(b) "we had enough," then returns inside. § 87(2)(b) is talking loudly into her phone to her attorney, and also directing comments toward the daughter. At the 11:00 mark, Respondent again steps outside and says to § 87(2)(b) who briefly places her hand to her chest, "You need to stop. You want to go to the hospital? If you don't stop it, we're gonna send you to the hospital to get checked out, okay?" § 87(2)(b) continues talking on her phone and appears physically fine. Respondent walks down to the front gate, and § 87(2)(b) enters the house.

§ 87(2)(b) testimony was essentially consistent with what was seen and said on the video footage. She testified in a calm, convincing manner that one of the landlords blocked her access to the kitchen, threatened her, and spit in her face. § 87(2)(b) was particularly concerned about being spit on because of COVID, and she called 911 to report the incident. When the police officers arrived, § 87(2)(b) identified herself as the caller, and spoke with Respondent's partner regarding what had occurred, while Respondent went inside to speak with the landlord and her family. The partner informed § 87(2)(b) that this was a landlord-tenant matter; § 87(2)(b) testified that this upset her because the officers were not addressing her concern and she felt unsafe. Nevertheless, § 87(2)(b) remained calm, until the landlord's daughter arrived and screamed threats at her in the officers' presence. (Tr. 19-23, 30-33, 45-48)

According to § 87(2)(b), while she was trying to speak with her attorney on the phone, the daughter continued to scream and argue with her. Respondent came out of the house and stated to Ibreus that if she did not cut it out, he would send her to be evaluated. § 87(2)(b) felt like she was being treated as the problem, when she really was the victim. She testified that she has no history of mental health issues, and has never been removed to a hospital for a psychological evaluation. (Tr. 27-29, 37-39, 49-58)

Respondent testified that § 87(2)(b) appeared visibly upset when the officers explained to her that this was not an arrestable offense, and that they would instead prepare a harassment report. Respondent acknowledged, though, that § 87(2)(b) was calm and rational throughout much of their interaction, and did not pose a danger to herself or anyone else. As Respondent was inside attempting to gather information from the landlord for the report, he heard § 87(2)(b) and the landlord's daughter arguing and screaming at each other outside. Respondent was concerned that the argument might escalate into a physical altercation once the officers left, so he stepped outside and said "enough," with the goal of resolving the dispute peacefully; the arguing briefly stopped, and Respondent returned inside. When the screaming resumed, Respondent went back outside and told § 87(2)(b) to calm down. § 87(2)(b) had her hand clutching her chest and seemed out of breath from arguing, so Respondent, in part based on his years of experience as an Emergency Medical Technician, was concerned that she might be having a panic attack. Respondent claimed that it was out of that concern that he told § 87(2)(b) that if she did not stop, she would be sent to the hospital to get checked out. Respondent conceded, however, that he never mentioned that he was worried about § 87(2)(b) having a panic attack when he was questioned about his comment during his official CCRB interview on September 29, 2021. (Tr. 67, 70-74, 82, 84, 98-100, 114-30)

According to Respondent, before they arrived at the scene, the officers did a check on the address of the incident, and learned that there had been multiple prior reports involving landlord-tenant harassment. Respondent testified that he believed that at some point he ran a check on § 87(2)(b) name, and an EDP history appeared; Respondent could not, however, provide any specific details, and he did not produce for trial any documents verifying this claim. (Tr. 69-70, 78-79, 102-05, 132-37)

Specification 1 charges Respondent with wrongfully threatening to remove § 87(2)(b) to the hospital without sufficient legal authority to do so. Respondent does not dispute that he stated to Respondent, "If you don't stop it, we're gonna send you to the hospital to get checked out." Indeed, the statement was captured by the BWC footage (CCRB Ex. 4, at 11:00). Instead, Respondent claims that the statement was not intended as a threat, but was born out of his concern that she was having a panic attack.

However, after carefully reviewing the video footage, in conjunction with the trial testimony, I am not persuaded by Respondent's explanation. His claim is not consistent with the overall tenor of the interaction, as captured by the video. Neither through words nor actions does Respondent seem to be genuinely concerned that § 87(2)(b) is about to have an anxiety attack. Rather, he appears troubled that her loud arguing is interfering with his efforts to de-escalate the situation and gather information from the landlord, and he resorts to threatening her with removal to the hospital. Additionally, his claim at trial, that he feared § 87(2)(b) was having a panic attack, was inconsistent with his prior statement to the CCRB, where he never mentioned such a concern when asked to explain why he made the statement to her. Based on the credible evidence, I conclude that when Respondent made that comment to § 87(2)(b), he was wrongfully threatening to treat her as an EDP who he would send to the hospital for a psychiatric evaluation.

Section 221-13 of the Patrol Guide defines an EDP as an individual "who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others." Here, a reasonable view of the video footage does not support a conclusion that § 87(2)(b) was an EDP during this incident. Although she was visibly upset, particularly after the landlord's daughter arrived, § 87(2)(b) did not behave in a deranged manner, nor did she appear to be a threat to anyone. Respondent, himself, conceded that she was mostly calm and rational throughout their interactions, and that she did not pose a threat of safety to herself or others.

As such, there was no justification for Respondent's threat to § 87(2)(b) that she would be removed to a hospital in order to be checked out. This tribunal recognizes that Respondent was attempting to manage a heated dispute, trying to prevent a verbal altercation from escalating into a physical one. Nevertheless, Respondent went too far when he resorted to threatening § 87(2)(b) with removal to the hospital. Accordingly, I find Respondent guilty of Specification 1.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. See 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

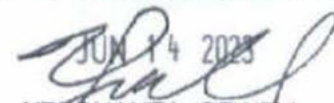
Respondent, who was appointed to the Department on January 10, 2018, has been found guilty of wrongfully threatening to remove § 87(2)(b) to the hospital. The CCRB has recommended that Respondent forfeit ten (10) penalty days, the presumptive penalty for this offense.

On the one hand, Respondent crossed the line when he told § 87(2)(b) that he was going to have her removed to the hospital if she did not calm down. Under the specific circumstances presented here, this statement constituted an improper threat. An individual who had contacted the police for assistance was wrongfully subjected to a threat of hospitalization, and there must be appropriate accountability.

However, as discussed above, it is important to take into account that throughout this incident, Respondent was attempting to deal with a volatile situation in a measured manner. He kept the parties to the dispute separated, as he and his partner attempted to gather the relevant information. Their efforts to de-escalate were made difficult by the on-going shouting between the parties, which became worse upon the arrival of the landlord's daughter. It was in this context that Respondent made the inappropriate statement to § 87(2)(b) where he threatened to have her removed to the hospital. On balance, a mitigated penalty of five (5) vacation days will fairly and adequately address the misconduct of Respondent, who has no disciplinary record, and has received strong performance evaluations.

Taking into account the totality of the facts and circumstances in this matter, I recommend that Respondent forfeit five (5) vacation days.

APPROVED


JUN 14 2023
KEECHANT L. SEWELL
POLICE COMMISSIONER

Respectfully submitted,


Jeff S. Adler
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 4, 2023

Re: CCRB Case No. 202006125 involving Police Officer Marcelino Roman, Tax No. 965481
(DADS No. 2022-24983)

Dear Mr. Darche:

The Police Commissioner has reviewed and considered the entire record in this matter and intends to approve, in its entirety, the trial decision of Assistant Deputy Commissioner of Trials Jeff S. Adler, both in its findings and in its penalty recommendation for Police Officer Roman. The recommended penalty falls within the penalty range specified in the Department's Disciplinary System Penalty Guidelines.

Thus, the Police Commissioner intends to approve the penalty recommended by the Assistant Deputy Commissioner of Trials that calls for Police Officer Roman to forfeit five (5) vacation days. Please consider the reasoning incorporated in the trial decision as wholly adopted by the Police Commissioner.

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Craig Hayes, Esq.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

May 10, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Marcelino Roman
Disciplinary Case No.: 2022-24983

Dear Commissioner Sewell:

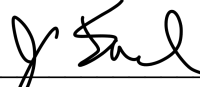
I am writing in response to the letter from Inspector Lourdes Soto, dated May 4, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to approve, in its entirety, the trial decision of Assistant Deputy Commissioner of Trials Jeff S. Adler, both in its findings and its penalty recommendation for Police Officer Roman. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Inspector Soto’s notification.

Inspector Soto stated that after reviewing and considering the entire record in this matter that ADCT Adler’s recommended penalty of five (5) vacation days falls within the penalty range specified in the Department’s Disciplinary System Penalty Guidelines and is therefore appropriate. CCRB disagrees with this determination for the following reasons:

Police Officer Roman was found guilty of wrongfully threatening to remove the Complainant to the hospital without sufficient legal authority to do so. The Court’s recommended penalty of forfeiture of five (5) vacation days is too lenient. Police Officer Roman’s misconduct and disregard for the rules of the Patrol Guide and Department policy, warrants the imposition of the presumptive penalty of forfeiture of ten (10) vacation days as requested by CCRB. There were no mitigating factors that would justify a penalty of five (5) days’ vacation forfeiture.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that Police Commissioner accept ADCT Adler's findings in the herein matter, but reject the ADCT Adler's recommendation of forfeiture of five (5) vacation days and impose CCRB's penalty recommendation-the presumptive penalty as indicated in the Disciplinary Matrix of forfeiture of ten (10) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Craig Hayes, Esq.